Harris County District Court

Cause No. 2025-CV-0018

Stacy Andrews, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 5, 2025
Plaintiff's counsel:	Matthew Day, Kelly & Jones Law Group

PARTIES

Plaintiff Stacy Andrews is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of insurance under which Plaintiff seeks benefits and against which this claim is brought.

FACTS

On October 13, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Pearland, Texas, when a vehicle traveling in the opposite direction crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The impact occurred at a low rate of speed, but it was sufficeint to force Plaintiff's head and neck violently forward and then backward. Plaintiff reported the collision to the police and to Defendant promptly and cooperated with Defendant's investigation. Plaintiff sought medical care the same day for neck pain, stiffness, and headache, and was diagnosed with whiplash injury to the crevical spine. Plaintiff has followed the treatment plan prescriebd by his physicians.

NEGLIGENCE

The at-fault driver breached the duty of ordinary care owed to others on the roadway by failing to keep a proper lookout, failing to control his vehicle, and crossing into oncoming traffic. Defendant, as the insurer providing coverage under the applicable policy, is obligated under the terms of that policy and Texas law to pay covered benefits and to evaluate and resolve the claim in good faith. Defendant has failed to pay the amounts owed in a timely and reasonable manner, and its conduct in handling this claim violates the Texas Insurance Code and the Texas Deceptive Trade Practices Act.

DAMAGES

As a direct result of the collision, Plaintiff has suffered physical pain, mental anguish, medical expenses, lost wages, and diminished capacity to perform daily activities. These injuries are expected to continue into the future. Plaintiff seeks actual damages, statutory damages, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $61,000.00, together with pre-judgment and post-judgment interest as allowed by law.